The influence of empathy in legal professionals handling violent cases involving ASPD offenders on susceptibility to secondary traumatic stress.

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Abstract

Professionals in the legal field are vulnerable to developing secondary traumatic stress (STS) literature views how handling violent criminal cases involving ASPD offenders and the role of high and low empathy influence higher or lower chances of STS, respectively. The review explores how empathy increases or decreases the vulnerability to STS in legal professionals taking care of violent cases with ASPD offenders. The paper synthesizes findings from various studies about ASPD, STS, and particularly the influence of empathy in STS. The literature shows mixed evidence: empathy has been found to play a major role, while few studies found no relationship between empathy and STS. Moreover, the paper has found the influence of ASPD offenders in the development of STS. This review highlights the need for empirical findings with an appropriate sample and calls for training programs protecting legal professionals' well-being.

Keywords: empathy, secondary traumatic stress (STS), violent criminal cases, antisocial personality disorder (ASPD), vicarious trauma (VT), occupational stress, forensic psychology, professional wellbeing, criminal victimization, judicial system impact

1. Introduction

The research focuses on the vulnerability of legal professionals to secondary traumatic stress (STS), in particular the role of empathy in professionals while working with Antisocial Personality Disorder (ASPD) offenders. The topic explores the negative impact on the mental health of professionals in the law field, which influences their anxiety, sleep patterns, and relationships. It also affects the judicial systems in the long run. This review argues that high empathy in legal professionals increases the susceptibility to STS, while low empathy reduces it. In particular, the professionals involved in violent criminal cases with ASPD offenders. However, the literature lacks clarity on gender differences in vulnerability to STS and also lacks empirical clarity on the influence of ASPD offenders in the development of STS.

2. Antisocial personality disorder

This theme explores antisocial personality disorder (ASPD), giving background information, including ASPD individuals' violent nature and distinguishing between ASPD and psychopathy. The studies in this section are connected by their focus on how ASPD individuals' violence would leave their victims traumatized.

2.1 ASPD general

One way researchers have studied ASPD is by referring to the common definition and types of traumas related to ASPD. In a research article discussing Violent Personality and how ASPD, Sociopathy, and Psychopathy are linked to the Violent Personality spectrum Johnson, 2019 (1) recognizes the DSM-5 description of Antisocial Personality Disorder as a pervasive pattern of disregard for and violation of the rights of others since age 15. In a randomized clinical trial with 88 participants investigating the relation between specific types of lifetime trauma and ASPD and psychopathy, Gobin et al, 2015 (2) identifies that individuals with a history of crime-related and physical trauma are more likely to be diagnosed with ASPD than those without such a history. Together, the studies' findings indicate the context of ASPD, exploring the description and the specific trauma associated with ASPD.

All the studies give contextual information about ASPD, placing it as a part of the violent personality. Johnson, 2019 (1) highlights the basic definition of ASPD, while Gobin et al, 2015 (2) emphasized the specific trauma associated with ASPD using empirical findings. This suggests the ASPD research focus ranges from conceptual definition to tested findings. Overall, the literature shows a pattern from theoretical to empirical understanding of ASPD in individuals, suggesting that research on ASPD is building on a conceptual foundation and evolving to empirical findings.

2.2 ASPD & violent behavior

Many studies have examined ASPD individuals in relation to aggression and crimes committed. In a cross-sectional survey exploring the explanatory pathway relating childhood traumatic exposure, antisocial personality typologies and risk of violent behavior among 162 adult male inpatients with SMI, Bruce & Laporte, 2015 (3) highlighted that early starters (childhood onset ASPD) were more likely to be violent and report childhood traumas than late starters (adulthood onset ASPD) and those without antisocial histories. This implies that not all ASPD offenders are likely to engage in violence; rather, in particular, male early-starter ASPD offenders produce more violent behaviors comparatively. In a systematic review and meta-regression analysis of studies with over 12 million participants examining the risks of antisocial behavior, violence, and repeat offending in PD, and exploring the sources of heterogeneity in risk estimates Yu et al, 2012 (4) found that ASPD individuals are more violent than other samples. This suggests that ASPD offenders are more likely to have victims traumatized in violent cases. In a cross-sectional study characterizing impulsive and premeditated aggression in 134 male ASPD offenders and determining the potential role of psychopathic traits, impulsivity and SUD as predictors Azevedo et al, 2020 (5) found that ASPD individuals commit a higher frequency of violent crimes. This indicates that ASPD subjects are highly violent, leaving their victims traumatized. Ultimately impacts professionals working on such cases and may develop STS. In a longitudinal design study aiming to know which types of crime are related to ASPD using 1045 participants' data, Fridell et al, 2008 (6) identified that ASPD individuals were more likely to commit violent, property, and drug crimes than individuals without ASPD. Comparing ASPD and non-ASPD individuals, violent crimes registered were statistically low and similar, while property and drug offenses registered for ASPD subjects were statistically significant compared to those for non-ASPD subjects. This highlights that ASPD individuals are statistically more likely to commit

property and drug offenses than violent crimes, so ASPD offenders may not influence STS in professionals involved in cases with ASPD. All the studies' findings suggest that ASPD individuals are violent, particularly early male starters, thus more likely to be involved in violent criminal cases. Although ASPD offenders may commit other types of crimes, such as property & drug offences, rather than violent crimes.

Across studies, violence and violent crimes were consistently linked to ASPD individuals. Fridell et al, 2008 (6) and Azevedo et al, 2020 (5) focused on violent crimes, while Bruce & Laporte, 2015 (3) and Yu et al, 2012 (4) emphasized the violent nature of ASPD individuals. Furthermore, Bruce & Laporte, 2015 (3) characterizes the specific type of ASPD subject, while Fridell et al, 2008 (6) compare different types of crimes committed by ASPD subjects and Yu et al, 2012 (4)'s investigation examines repeat offending in personality disorders. These differences suggest the findings depend on the specific research focus. Overall, the literature shows a trend toward recognizing the positive relation between violence and ASPD. Research is expanding from a traditional focus on violent acts committed by ASPD individuals to exploring in depth, such as comparisons between late and early ASPD starters and the different types of crimes.

2.3 ASPD & psychopathy

Researchers have explored ASPD in comparison to psychopathy by investigating the types of aggression portrayed. The study Johnson, 2019 (1) found that psychopaths and sociopaths naturally meet the diagnostic criteria for ASPD. In particular, an estimate of 3-15% of those with ASPD likely have psychopathy and another 30% likely have sociopathy. This implies the distinction between ASPD patients and psychopaths and indicates another area to be explored while we discuss ASPD offenders. In a review investigating the nature of their violent behavior, the relationship among psychopathy, thrill-seeking, and sadistic behavior Porter et al, 2018 (7) emphasizes that high-psychopathic individuals are more likely to commit nonsanctioned violence than any other members of society and highlights that psychopathic individuals are likely to commit premeditated violence. These findings are similar to findings for ASPD with psychopathic traits individuals Azevedo et al, 2020 (5), therefore suggesting that ASPD with psychopathic traits offenders involved in violent criminal cases are more likely than ASPD offenders to influence the development of STS in professionals. Additionally, emphasizes that ASPD offenders are less violent than psychopaths, so the influence of ASPD offenders is less likely than that of psychopaths in the development of STS in professionals involved. The study Azevedo et al, 2020 (5) identifies ASPD patients as more likely to exhibit impulsive aggression than premeditated aggression. Furthermore, found that ASPD patients who have high scores of psychopathic traits are more likely to exhibit premeditated aggression than impulsive aggression. This highlights that ASPD offenders with psychopathic traits exhibit more brutal acts of violence, whilst ASPD offenders without such traits don't. Premeditated violence, which is predatory violence, is more likely to traumatize victims than impulsive violence. Therefore, this emphasizes that ASPD with psychopathic traits would significantly influence the growth of STS in professionals compared to ASPD without such traits. Ultimately, these findings explore a different aspect of ASPD, linking with psychopathy. Additionally, establishes the distinction between the two terms, psychopathy and ASPD.

All the studies illustrate the difference between psychopathy and ASPD, while demonstrating the link between ASPD, psychopathy, sociopathy, and premeditated aggression. Additionally, both studies Porter et al, 2018 (7) and Azevedo et al, 2020 (5) found the exhibition of premeditated aggression in individuals with psychopathic traits or psychopathy. The two studies explored violence, while Porter et al, 2018 (7) focused on high-psychopathic individuals and Azevedo et al, 2020 (5) examined ASPD and ASPD with psychopathic traits individuals. This difference suggests that both groups of samples are violent, while the extent to which may vary. Overall, the literature shows a trend toward identifying ASPD as part of the psychopathy spectrum. Moreover, it demonstrates how research is expanding from a traditional focus on psychopathy to other personality disorders such as ASPD, indicating the distinction between ASPD and psychopathy.

3. Secondary trauma stress

This theme examines secondary trauma stress (STS) in general and while focusing on specific factors including traumatized victims and empathy. The studies in this section are connected by their investigation of STS in professionals, specifically those working with traumatized victims and looking at empathy as a factor.

3.1 STS general

One way researchers have studied STS in professionals is by exploring the link with vicarious trauma (VT) and examining the developmental factor, past traumas. In a research article describing the importance of awareness about secondary trauma in professionals in the law field who work with traumatized clients, Fischman, 2008 (8) states that STS is not a universal phenomenon that influences all professionals interacting with trauma. This suggests that susceptibility to STS differs from individual to individual and that varying levels of empathy would be one of the factors impacting it. In a questionnaire survey of 142 participants, characterizing the impact of work with trauma victims on attorneys, Levin, 2008 (9) found that on both secondary trauma and burnout scales, attorneys were consistently higher than mental health professionals and social service workers. This implies that it is highly likely most of the professionals in the law field are more prone to STS, and thus other studies' findings using participants in other fields would not be generalizable to the professionals in the law field, or the findings may be more significant for professionals in the law field. Furthermore, the study's results showed that adult and prior childhood trauma history were not predictive of higher scores on any of the measures, giving contextual insight into the development of STS. Additionally, the study identified that varying levels of psychological distress are linked with the syndromes of STS, burnout, and vicarious trauma (VT), suggesting that findings related to any may apply to each other. In a study interviewing 37 legal professionals investigating the impact of role-taking of a person experiencing emotional turmoil and who is victimized Groggel, 2023 (10) highlighted that workers who identified with traumatized clients due to their own past experiences seemed to be more likely to cognitively and sometimes empathically take the role of the victims. This emphasizes the role of experiencing similar past trauma as their clients as a

factor in the development of STS. In a survey with 149 carers examining the consequences of working with distressed and traumatized clients, Tehrani, 2007 (11) recognized that a high number of carers experience a negative perspective about the world – which describes VT – and that challenging themselves and their self-esteem are related to STS. This refers to a relationship between VT and STS, which can explore a different aspect of STS and is likely to influence STS in professionals. Together, these findings explore the foundation of STS considering the past trauma and the link with VT. Additionally, gives insight into the extent to which other related studies' findings with participants in non-law fields would apply to this literature.

Across studies, the findings demonstrate the context of STS and examines in general. In particular, the studies including Levin, 2008 (9) and Tehrani, 2007 (11) agree on the relationship between STS and VT. This similarity suggests any findings related to VT can be linked to STS and vice versa. Levin, 2008 (9) found a non-significant relationship between adult and prior childhood trauma history and the burnout and STS scales, while Groggel, 2023 (10) identified that professionals who share similar past experiences or trauma with the victims were found to be more vulnerable to STS. This difference implies that past trauma may not directly influence the susceptibility to STS, whilst it may indirectly, via cognitively or empathically role-taking mechanisms, contribute to the development of STS. Altogether, the literature shows a trend toward linking STS with VT and psychological distress with STS, VT, and burnout. Additionally, examines the predictive factors of STS, such as profession and trauma history. Research is growing from recognizing the individualistic differences in vulnerability to STS to examining the relations between syndromes and specific factors. This pattern highlights the need for more in-depth studies considering factors like empathy and ASPD offenders' influence in STS.

3.2 Traumatized victim

Multiple studies have focused on STS's development by investigating the role of traumatized victims. The study, Levin, 2008 (9), identified that work with traumatized clients, specifically when attorneys have high caseloads and a frustrating system, increases susceptibility to STS and burnout. In a review examining the impact for workers of working with victims of traumatic events, particularly criminal victimization, Salston & Figley, 2003 (12) emphasized that working with victims traumatized by criminal victimization increases the chances of traumatizing professionals. The study Tehrani, 2007 (11) found that a large number of carers working with traumatized and distressed people experience a negative impact on their own assumptions, values and beliefs. This negative impact on personal beliefs describes VT, which is found to be related to STS Tehrani, 2007 (11). Thus, affirms that working with traumatized victims could lead to the development of STS in professionals involved. All these findings together agree on the positive relationship between traumatized victims and STS, which leaves the literature to explore other variables affecting STS, such as empathy. Moreover, the research demonstrates that criminal cases with ASPD offenders are likely to leave their victims traumatized, influencing STS in professionals.

Across studies, traumatized victims have been consistently linked to increased risk of STS in professionals working with them. Salston & Figley, 2003 (12) focuses on victims traumatized by criminal victimization, while Levin, 2008 (9) simultaneously considers the frustrating system and high caseloads, in particular. This difference illustrates that traumatized victims influence STS development but recognizes other factors, which could be outweighed. Additionally, while the studies Levin, 2008 (9) and Salston & Figley, 2003 (12) establish the direct link between traumatized victims and STS, Tehrani, 2007 (11) indirectly identifies the link between VT and STS. This difference shows that victims exposed to traumatic events impact professionals, while it may vary in the development of STS or VT. Broadly, the research shows a pattern toward exploring traumatized victims' influence on STS. Research is increasing from viewing the impact of traumatized victims in general to recognizing certain situations, which increases the probability of impact.

3.3 Empathy

Researchers have analyzed the role of empathy influencing STS in professionals. The study Salston & Figley, 2003 (12) recognized that empathy, desire to assist victims of traumatic events, and exposure to the traumatic material of victims are foundational factors in the development of STS. Another study Groggel, 2023 (10) found that professionals tend to cognitively, and sometimes empathically, role-take with victims, with other factors influencing this, including their social statuses related to victims, their own personal experiences, their positions within their organizations, and their organization’s mission. This suggests that there are various other factors which could influence STS development and not only empathy. Moreover, the finding supports empathically role-taking with victims as one of the influences in the formation of STS. Likewise, the study by Levin, 2008 (9) highlighted that across both attorneys and mental health professionals, women had significantly higher scores than men on secondary trauma and burnout scales. This implicitly could refer to higher empathy increasing the vulnerability to STS in professionals, according to the assumption that females have greater empathy than males. This assumption taken here is supported by the findings of the study Richardson et al, 2016 (13). Additionally, one of the key findings is that female judges and those who had been on the bench more than six years were at greatest risk of VT. Considering the association between VT and STS according to the study Tehrani, 2007 (11), this finding may suggest higher empathy influencing VT, and thus STS. In a study with a quasi-experimental design examining the impacts of empathy and VT on wisdom and psychological distress among 94 lawyers Juvekar & Murali, 2021 (14) identified that empathy has no significant effect on psychological distress, while VT does. These findings highlight that empathy has no relevant impact on STS, as the study Levin, 2008 (9) found psychological distress congruent to STS, VT, and burnout. In a cross-sectional survey investigating how self-compassion and empathy might influence the degree of STS, burnout, and compassion satisfaction using 88 participants’ data Richardson et al, 2016 (13) found that females reported greater empathy but lower self-compassion than males. This finding is useful in understanding other studies’ findings about comparisons between females and males relating to empathy. Moreover, the study’s data identified a non-significant relationship between empathy and STS. In a qualitative study assessing the consequences of working with traumatized persons on 77 medical workers Crumpei & Dafinoiu, 2012 (15) recognized that there is no relationship between clinical empathy and STS, and rather sympathy

increases vulnerability. This finding could suggest a similar or adverse relationship for law-related professionals. Furthermore, the study emphasized the paradox of the clinical relationship. While high empathy has better results in treatment, recovery, and patient satisfaction, on the contrary, it threatens decision objectivity and increases the specialist's susceptibility to STS symptoms. This highlights the need for empirical clarity on the influence of empathy on vulnerability to STS in legal professionals. To an extent, all the findings possibly affirm an indirect impact of empathy in the development of STS. Ultimately, all the studies presented indicate the importance of empirical clarity required on this literature's topic to ensure required action is taken to avoid negative impact on judicial systems.

Studies including Salston & Figley, 2003 (12), Groggel, 2023 (10) and Levin, 2008 (9) agree that empathy directly or indirectly influences STS in professionals. Additionally, studies such as Juvekar & Murali, 2021 (14), Richardson et al, 2016 (13), and Crumpei & Dafinoiu, 2012 (15) agree that empathy doesn't play a significant role in the development of STS. The studies differ in focus. Groggel, 2023 (10), Levin, 2008 (9) and Juvekar & Murali, 2021 (14) emphasized the impact on legal professionals, while Richardson et al, 2016 (13) and Crumpei & Dafinoiu, 2012 (15) explored the impact on medical professionals. This difference suggests the findings depend on the sample selected. On the whole, the review depicts a trend toward recognizing empathy as a factor influencing STS, but with increasing attention to context – such as participants' professions – rather than assuming universal significance.

4. Conclusion

In conclusion, the literature suggests that empathy influences professionals' vulnerability to STS to some extent, though other factors can develop STS in a professional. Furthermore, the research shows that ASPD offenders are violent in nature, but the evidence doesn't establish a link between ASPD offenders involved in violent crimes and the susceptibility to STS in professionals. A strength of the reviewed studies is methodological diversity, from interviews to longitudinal designs, which ensures the validity of the findings examined in this review paper. Another strength of this literature is the consistency of the results across ASPD and STS-related studies; ASPD is repeatedly linked with violent acts and empathy is repeatedly found as one of the factors in the development of STS, which increases the reliability of this literature. A weakness of the reviewed studies is generalizability. Few studies have an androcentric sample, limiting generalizability of the ASPD findings to females. Moreover, studies with participants in different fields, for instance the medical field, limit the generalizability to professionals in the legal field. Some studies have small sample sizes, and literature reviews used skewed samples, reducing the generalizability to the larger and more diverse population. Few studies have investigated ASPD and STS in female participants, leaving a gap in understanding gender differences. Furthermore, a minimal number of studies have focused on empathy as a factor of STS or have conducted an empirical study to explore empathy as a factor influencing STS, leaving a gap in understanding the role of empathy with empirical clarity. Future research should use larger and more diverse samples to investigate the relationship between empathy and STS in legal professionals handling violent crime cases with ASPD offenders compared to ASPD with psychopathic trait offenders. This literature emphasizes and calls for initiatives like training

programs for professionals in the legal field to reduce the vulnerability of developing STS and protect their well-being. This review supports the thesis that legal professionals handling violent crimes increase the susceptibility to STS, but highlights the need to explore gender differences in offenders and the need for empirical studies with, in particular, ASPD offenders and ASPD with psychopathic traits offenders. In addition, the literature has found mixed evidence supporting that high-empathy professionals are more vulnerable to developing STS; therefore, the literature emphasizes the need for empirical clarity.

Abbreviations

1. ASPD - Antisocial personality disorder
2. STS - secondary traumatic stress
3. VT - vicarious trauma

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Acknowledgements

I thank Serhii Malevych for reading the draft and offering helpful comments on the text's clarity. Additionally, I used Grammarly to avoid grammatical errors.